DATE 03/27/2023

PURCHASE ORDER C23021

FOB:	DESTINATION - FREIGHT NO
BUYER:	SHWU YUAN DING

TO: PIVOT INTERIORS, INC.
3200 PARK CENTER DR.
100
COSTA MESA CA 92626

SHIP TO: Santa Ana Base Operations
4301 West MacArthur Blvd
Santa Ana, CA 92704

EMAIL INVOICES TO VENDORINVOICES@OCTA.NET OR MAIL TO:

Orange County Transportation Authority
PO BOX 14184
Orange, CA 92863-1584
Attn: Accounts Payable

PAYMENT WILL NOT BE MADE UNLESS INVOICE INDICATES PURCHASE ORDER NUMBER.

ATTN: KHOI NGUYEN
PHONE: 9499885442

REQUESTOR: ABRAHAM ANDRADE

ITEM NO.	QTY.	U/M	STOCK NO.	DESCRIPTIONS	DELIVERY DATE	TERMS	UNIT PRICE	EXTENSION
001		EA		OFFICE MODULAR SYSTEM SERVICES Effective through 03/31/2025 in accordance with Exhibit A, Scope of Work, Exhibit B, Price Summary Sheet, Exhibit C, Insurance, and Exhibit D, Level 1 Health, Safety and Environmental Specifications, attached to and, by this reference, incorporated herein. Requesting Department: General Services Terms and conditions as stated in IFB 2-3021 apply to this blanket purchase order. A CORRECT AND COMPLETE INVOICE. A CORRECT AND COMPLETE INVOICE SHALL CONSIST OF AT LEAST THE FOLLOWING ELEMENTS: PURCHASE ORDER NUMBER, DATE OF ORDER, INVOICE NUMBER, DATE OF INVOICE, CONTRACT PAYMENT TERMS, NAME OF BUYER OR CONTRACT ADMINISTRATOR, LINE BY LINE LISTING OF ALL ITEMS BEING INVOICED AND IDENTIFICATION OF INVOICING FIRM.	03/31/25	NET-30 1290-7662-A0001-4W4 1290-7611-A5310-1NX	$240,000.00	$240,000.00

ORANGE COUNTY TRANSPORTATION AUTHORITY

BY:_____

OCTA GENERAL PROVISIONS FOUND ON PAGE 3 ARE INCORPORATED HEREIN.

NOT SUBJECT TO TRANSPORTATION OR FEDERAL EXCISE TAX.

SUBTOTAL	
SALES TAX	
TOTAL	

VENDOR COPY

DATE 03/27/2023

PURCHASE ORDER C23021

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PHONE: 9499885442

REQUESTOR: ABRAHAM ANDRADE

ITEM NO.	QTY.	U/M	STOCK NO.	DESCRIPTIONS	DELIVERY DATE	TERMS	UNIT PRICE	EXTENSION
				VERBAL ADDITIONS, DELETIONS, OR MODIFICATIONS OF ANY KIND TO THIS PURCHASE ORDER SHALL BE CONSIDERED UNAUTHORIZED AND INVALID. DO NOT ACCEPT VERBAL MODIFICATIONS FROM ANY EMPLOYEE, AGENT OR IMPLIED AGENT OF THE ORANGE COUNTY TRANSPORTATION AUTHORITY. VALID MODIFICATIONS TO THIS PURCHASE ORDER SHALL BE IN THE FORM OF A WRITTEN AMENDMENT, SIGNED BY AN AUTHORIZED MEMBER OF THE ORANGE COUNTY TRANSPORTATION AUTHORITY PROCUREMENT STAFF. PAYMENT UPON APPROVAL OF CORRECT AND COMPLETE INVOICE. ANY COSTS INCURRED IN EXCESS OF THE TOTAL AMOUNT OF THIS PURCHASE ORDER, WITHOUT BEING AMENDED, SHALL BE CONSIDERED UNAUTHORIZED, AND AS SUCH MAY NOT BE PAID.				

ORANGE COUNTY TRANSPORTATION AUTHORITY

BY: _____

OCTA GENERAL PROVISIONS FOUND ON PAGE 3 ARE INCORPORATED HEREIN.

NOT SUBJECT TO TRANSPORTATION OR FEDERAL EXCISE TAX.

SUBTOTAL	$ 240,000.00
SALES TAX	$ 0.00
TOTAL	$ 240,000.00

VENDOR COPY

GENERAL PROVISIONS

1. INSPECTION AND ACCEPTANCE - All items are subject to final inspection and acceptance by AUTHORITY at destination notwithstanding any payment, passage of title, or prior inspection or test at SELLERs facilities. Final inspection will be made within a reasonable time after receipt of items hereunder. SELLER shall notify AUTHORITY of any known nonconforming product that is expected to be delivered or has been delivered. AUTHORITY shall have authority to approve or refuse identified nonconforming product. Defective goods may be returned at SELLERs expense.

2. CHANGES - By written notice or order, AUTHORITY may, from time to time, order work suspension and/or make changes in quantities, drawings, designs, specifications, place of delivery or delivery schedules, methods of shipment and packaging, and property and services furnished by SELLER. If any such change causes an increase or decrease in the price of this agreement or in the time required for its performance, SELLER or AUTHORITY shall promptly notify the other party thereof and assert its claim for adjustment within thirty (30) days after the change is ordered, and an equitable adjustment shall be made. However, nothing herein shall excuse SELLER from proceeding immediately with the agreement as changed.

3. DEFAULT AND EXCESS REPROCUREMENT LIABILITY - AUTHORITY may terminate this agreement if a federal or state proceeding for the relief of debtors is undertaken by or against SELLER, or if SELLER makes an assignment for the benefit of creditors, or if SELLER fails after reasonable notice by AUTHORITY to cure a deficiency in performance or lack of progress thereto. AUTHORITY shall have such additional remedies as may be available whether or not it so terminates this agreement, including, but not limited to, payment by SELLER to AUTHORITY of expenses incurred by AUTHORITY in reprocuring elsewhere the same or similar items or services defaulted by SELLER hereunder, provided SELLERs reprocurement expenses obligation shall be limited to the excess costs above the price specified herein for such items or services.

4. INDEMNIFICATION - SELLER shall indemnify, defend, and hold harmless AUTHORITY from and against any and all claims (including attorneys fees and reasonable expenses for litigation or settlement) for any loss, damage, claim, or harm for bodily injuries, including death or damage to property caused by SELLER or its employees, subcontractors, or suppliers in connection with the performance of this agreement.

5. ASSIGNMENTS AND SUBCONTRACTS - Neither this agreement nor any interest herein nor claim hereunder may be assigned by SELLER, either voluntarily or by operation of law, nor may all or substantially all of the agreement be subcontracted by SELLER without AUTHORITYs prior written consent. AUTHORITYs withholding of consent shall not be deemed to relieve SELLER of its obligations to comply fully with the requirements hereof.

6. FEDERAL, STATE, AND LOCAL LAWS - SELLER warrants that, in the performance of this agreement, it shall comply with all applicable Federal, State and local laws and ordinances and all lawful orders, rules and regulations thereunder.

7. INFRINGEMENT INDEMNITY - In lieu of any other warranty by AUTHORITY or SELLER against infringement, statutory or otherwise, it is agreed that SELLER shall defend, at its expense, any claim or suit against AUTHORITY based on a claim that any item furnished under this agreement or the normal use or sale thereof infringes any United States Letters patent or copyright, and SELLER shall pay all costs and damages finally awarded in any such suit or claim, provided that SELLER is notified in writing of the suit or claim and given authority, information, assistance at SELLERs expense for the defense of same. If the use or sale of said item is enjoined as a result of such suit, SELLER, at no expense to AUTHORITY, shall obtain for AUTHORITY the right to use and sell said item, or shall substitute an equivalent item acceptable to AUTHORITY, and extend this patent indemnity hereto.

8. TITLE AND RISK OF LOSS - Unless otherwise provided in this agreement, SELLER shall have title to and bear the risk of any loss of or damage to the items purchased hereunder until they are delivered in conformity with this agreement at the F.O.B. point specified herein, and upon such delivery, title shall pass from SELLER, and SELLERs responsibility for loss or damage shall cease, except for loss or damage resulting from SELLERs negligence. Passing of title upon such delivery shall not constitute acceptance of the item by AUTHORITY.

9. NOTICE OF LABOR DISPUTE - Whenever SELLER has knowledge that any actual or potential labor dispute may delay this agreement, SELLER shall immediately notify and submit all relevant information to AUTHORITY. SELLER shall insert the substance of this entire clause in any subcontract hereunder as to which a labor dispute may delay this agreement. However, any subcontractor need give notice and information only to its next higher-tier subcontractor.

10. EQUAL EMPLOYMENT OPPORTUNITY - In connection with the execution of this agreement, the SELLER shall not discriminate against any employee or applicant because of race, religion, color, sex or national origin. The SELLER shall take affirmative action to ensure that applicants are employed, and that employees are treated during their employment without regard to their race, religion, color, sex or national origin. Such actions shall include pay, or other forms of compensation and selection for training, including apprenticeship.

11. TERMINATION FOR CONVENIENCE - AUTHORITY may terminate this agreement for its convenience at any time, in whole or in part, by giving written notice to SELLER of such termination, effective on the date of such notice. Upon receipt of said notice, SELLER shall immediately take action not to incur any further obligations, costs, or expenses, except as may be reasonably necessary to terminate its activities. AUTHORITY shall pay SELLER its allowable costs incurred to date of termination and those costs determined by AUTHORITY to be reasonably necessary to effect such termination. All finished or unfinished documents and other materials procured or produced by SELLER hereunder shall, at the option of AUTHORITY, become AUTHORITY property upon the date of such termination.

GENERAL PROVISIONS

12. AUDIT AND INSPECTION OF RECORDS - SELLER shall provide AUTHORITY such access to SELLERs books, records, and facilities as may be deemed necessary to examine, audit, and inspect all work data, documents, and activities related to the goods or services described herein. SELLER shall maintain such books, records, data and documents on a generally accepted accounting basis and shall clearly identify and make such items readily accessible to such parties during SELLERs performance hereunder and for a period of four (4) years from the date of final payment by AUTHORITY hereunder.

13. TIME IS OF THE ESSENCE - Time is of the essence in the performance of this agreement. SELLERs delivery of the items and related data and/or documentation and/or performance of required services in accordance with the schedule are a material requirement of this agreement.

14. WARRANTY - SELLER warrants to AUTHORITY, its successors and customers that all items furnished to AUTHORITY will be free from defects in material and workmanship, will conform to applicable drawings, designs, specifications and samples, will meet all functional and performance requirements and, to the extent this order calls for services to be performed, that such services will be free from defects in workmanship, will meet all of the requirements of this agreement and will be performed to the highest standards of workmanship in the industry. These warranties are in addition to all other warranties, express, implied or statutory. In addition, the warranties set forth in this section shall survive any inspection, delivery, acceptance or payment by AUTHORITY.

15. FORCE MAJEURE - Either party shall be excused from performing its obligations under this agreement during the time and to the extent that it is prevented from performing by an unforeseeable cause beyond its control, including but not limited to: any incidence of fire, flood; acts of God; commandeering of material, products, plants or facilities by the federal, state or local government; national fuel shortage; or a material act or omission by the other party; when satisfactory evidence of such cause is presented to the other party, and provided further that such nonperformance is unforeseeable, beyond the control and is not due to the fault or negligence of the party not performing.

16. GOVERNING LAW - The laws of the State of California and applicable local and federal laws, regulations and guidelines shall govern this agreement.

17. SEVERABILITY - If any term, provision, covenant or condition of this agreement is held to be invalid, void or otherwise unenforceable, to any extent, by any court of competent jurisdiction, the remainder of this agreement shall not be affected thereby, and each term, provision, covenant or condition of this agreement shall be valid and enforceable to the fullest extent permitted by law.

18. NOTICES - All notices hereunder and communications regarding the interpretation of the terms of this agreement, or changes thereto, shall be effected by delivery of said notices in person or by depositing said notices in the U.S. mail, registered or certified mail, return receipt requested, postage prepaid to the addresses set forth in the agreement.

19. COMPLETE AGREEMENT - This agreement, the purchase order, and any attachments thereto or referenced therein, constitute the complete and exclusive statement of the term(s) and condition(s) of this agreement between SELLER and AUTHORITY and supersede all prior representations, understandings, and communications.

PROJECT SPECIFICATIONS

OFFICE MODULAR SYSTEMS SERVICES

Contractor shall provide multiple services for the purchase, installation, reconfiguration and preventative maintenance of Knoll and other office furniture. These services include but, are not limited to:

- The installation and reconfiguration of Knoll Morrison and Dividend Modular furniture at the Orange County Transportation Authority (OCTA) administrative offices located in Orange, additional locations include Garden Grove, Anaheim, Irvine, Corona and Santa Ana.

- Dealer services, for the purchase of Knoll Modular Furniture (Knoll Morrison, Reff and Dividends). Workrite ergonomic office furniture, conference room furniture, and other office furniture, on an as-requested basis, on behalf of OCTA.

- Services for preventative maintenance and repair of Knoll Modular Furniture (Morrison, Reff and Dividends). System to include panels, work surfaces, storage units, lateral files, pedestals, overheads and chairs.

A. Requirements – Installation/Reconfiguration Services

1. Contractor shall be certified in the installation and reconfiguration of Knoll manufactured furniture, which shall include, but not be limited to the following Morrison Systems furniture:

    - Knoll Calibre Files
    - Morrison Network, Morrison Systems, Dividends modular furniture, (i.e. work surfaces, lateral file cabinets) Pedestals
    - Pencil Drawers
    - Reuter Overhead Cabinets
    - Task Lights
    - Storage Cabinets
    - Locking Mechanisms
    - Knoll Group Office Seating and Tables
    - Knoll Textiles (Panel coverings)
    - Knoll Ergonomic Seating
    - Other Manufacturer’s Ergonomic Seating
    - Other Manufacturer’s Conference Room Tables
    - Other Manufacturer’s Lobby Chairs and Tables

2. Ergonomic Office furniture includes: Workrite product or Comparable

    - Computer Task Chairs to accommodate the small statured population, average statured population, six-feet plus and/or the obese/morbidly obese population.

        Workrite Product – Features of Task Chair

        - Adjustable seat depth – seat slider
        - Adjustable arms, width and height
        - 25” five leg reinforced plastic base (hard floor casters upon request)
        - Upright adjustable backrest with structures to support the natural lumbar
        - Curve
        - Backrest tilt
        - Locking tilt
        - Rocking tilt
        - Pneumatic height adjustment
        - Model must have the ability to be available in petite, regular, and large size scales.

        Workrite Product – Features of adjustable keyboard tray

        - Adjustable arms, width and height
        - Product manufacturer
        - Product features adjustable keyboard tray
        - Keyboard platform and palm support with sliding mouse for left or right placement of the mouse

        Workrite Product – Features of Desk Corner Unit/Desk Bridge

        - Converts 90^0, curved or diagonal corners to useable work areas.
        - Color will be putty unless otherwise specified.

3. Contractor shall provide equipment (to include required installation and assembly, if needed) in the cost per item price. Furniture and equipment orders will not be limited to the items listed on the pricing page.

4. Contractor shall conduct demonstrations on the proper usage and features of required computer task chairs, included in per item cost.

5. Availability of items purchased will be within sixty (60) working days of the order.

6. Become familiar with OCTA furniture specifications/typical, and obtain knowledge of previous installations at OCTA.

7. Contractor shall conduct a "punch list" walk-through at the end of each job with an OCTA representative to ensure completeness of work.

8. Items purchased shall be delivered to a pre-selected OCTA facility designated below:

Furniture Locations

550 South Main Street, Orange, California 92868
600 South Main Street, Orange, California 92868
11800 Woodbury Road, Garden Grove, California 92843
11903 Woodbury Road, Garden Grove, California 92843
11911 Woodbury Road, Garden Grove, California 92843
11790 Cardinal Circle, Garden Grove, California 92843
1717 East Via Burton, Anaheim, California 92806
4301 West MacArthur Boulevard, Santa Ana, California 92704
2275 Sampson Avenue, Corona, California 92879
180 North Riverview Drive, Anaheim, California 92806
16281 Construction Circle West, Irvine, California 92606
6671 Marine Way, Irvine, California 92606
14736 Sand Canyon Avenue, Irvine, California 92618
1535 Scenic Ave. Costa Mesa, California 92626
301 Corporate Terrace Circle, Corona, California, 92879

Product Location

All products are stored at the OCTA Warehouse located at 11911 Woodbury Road in Garden Grove. If needed, before and after any installation or reconfiguration, all stored products will be picked up and replaced at the OCTA Warehouse. Additionally, the Contractor shall keep an ongoing inventory of stored products at the OCTA Warehouse. This inventory shall be completed as products are removed or replaced. This completed inventory must be provided to OCTA at the end of each job.

B. Requirements – Furniture Dealer

- Offer numerous lines of quality office furniture
- AutoCAD/Space Planning
- Plan Review and Specification Generation
- On Site Measurements

- Order Entry/Acknowledgement Review
- Production Monitoring
- Interaction with Contractor, Electricians and Communications Technicians
- Client Walk Through and Sign off
- Design, Fabrication and Custom Furniture
- Project Supervision
- Interior Design
- Service and Repair
- Inventory and Storage
- Authorized to sell Knoll Modular Furniture, OCTA standard
- Possess a detailed knowledge of the office space and supporting electrical, cabling and architectural standards for OCTA
- Ability to maintain a good relationship with the landlord/building owner
- Adhere to all applicable laws, statues, regulations and codes required for installation
- Manage coordination with the landlord's building architects and engineers, manufacturers and others required to execute the design, specification, and installation of the project
- Produce a schedule in cooperation with the necessary Contractors
- Schedule indicates the dates each service will be completed, includes approval time, order entry, delivery and installation dates of all elements
- Services necessary to prepare drawings, specifications and other documents listing in detail the requirements for the installation of the project
- Issue a "punch list" upon final completion and forward to OCTA for review
- Provide written warranties and related documents to the OCTA project manager

- Provide OCTA with current drawings reflecting completed installations. Updated drawings must be kept current

- Keep project area clean and maintained during business hours

C. Requirements – Preventative Maintenance - Repair Program

Contractor shall provide services for preventative maintenance and repair of Knoll Modular Furniture Systems (Morrison) including panels, work surfaces, storage units, lateral files, pedestals, overheads and chairs.

- Contractor shall provide an annual preventative maintenance program for Knoll modular furniture.

- Contractor shall be certified in the repair of Morrison and Dividends modular furniture systems and must also be certified.

- Morrison Systems furniture to include: Knoll Calibre Files, Dividends and Morrison Network and Morrison System modular furniture (i.e. work surfaces, lateral file cabinets, pedestals, pencil drawers, Reuter overhead cabinets, closets, task lights, storage cabinets and locking mechanisms: Knoll Group Office Seating and Tables, and Knoll Textiles (panel coverings).

Contractor shall provide preventative maintenance services annually, and as required for the following services:

Panels and Work surfaces –

a) check, touch up and polish surfaces
b) repair or replace torn panel fabric
c) check kick plates and electrical connections to modular furniture
d) tighten bullets, P-tops, if necessary.

Laterals, Pedestals, and Storage Units –

a) lubricate pedestals and laterals
b) align and level
c) touch-up and polish
d) align drawers lock mechanisms
e) check, clean, and lubricate lock mechanisms
f) check, clean and lubricate drawer suspensions.

Reuter Overheads -

a) check lock mechanism
b) check operation of suspension, touch up if necessary.

Seating –

a) repair of Knoll Bulldog chairs
b) repair Knoll Essentials Sports task chairs
c) repair ergonomic office, executive and conference room chairs.

D. OCTA Responsibilities

OCTA will provide full information regarding requirements for any installation project, including OCTA design objectives, constraints and criteria, including space requirements and expendability.

E. Billing

Contractor shall provide OCTA with a cost estimate of all work required, prior to commencement of the project.

Contractor shall work with OCTA to review and recommend for approval all invoices, applications, certificates of payment, and change order requests required throughout the course of installation and purchase of furniture.

Invoice must include date of job, description of job completed hours, cubicle, office number or office location and number of hours per technician worked.

Work will be paid per estimate, unless written approval has been obtained from OCTA for additional work and costs.

Any extra costs incurred during installation due to incorrect pull lists or inaccurate drawings will be at the Contractor's expense.

Samples of Current Products

The following products are currently installed at OCTA's administrative offices and facilities:

DP8VMMRR6430-5-612T-K-612T-W13608
Preconfigured Panel, Full View, Monolithic/Monolithic
Fabric to Raceway Side 1 &2
64"h x 30"w
5 Top Cap: Flat Metal
612T Top Cap: Medium Metallic Grey
K Raceway with Knockouts
Core Paints
612T Race: Medium Metallic Grey (Textured)
Fabric: Annex W13608, Color: Fog

DS3PMSL7214L-612T-142-142
Horizon Panel Mount Overhead with Laminate Doors with Lock
72”w x 14”h
612T Paint, Medium Metallic Grey (Textured)
142 Door: Grey Ash
142 Door Edge: Grey Ash
With Lock, Keyed Alike

DS4PFL24A-F-612T
Floorstanding Pedestal, Series 2 Steel Front, Box/Box/File,
23-1/4”d with Lock, No Back, Recessed Pull
F: Full Extension Box Drawer Slides
Core Paints
612T Paint: Medium Metallic Grey (Textured)
Keyed Alike

D1R12024GQ-114-114
Worksurface, Rectangular, 120”w x 24”d with Grommet
Core Laminates
114 Lam: Folkstone Grey
Core Edgebands
114 Edge: Folkstone Grey

67HHP2SXHC-DK-01-XOB03-USF-XU13-XHB13
Remix High Back Chair, High Performance Arms, Plastic Base
Standard Cylinder, No Lumbar, Hard Casters
DK Finish: Dark
01 Strap: Storm
XOB03 Outer Back: Pebble
USF Seat: Ultra Seat Foam
XU Seat: Delite
XU13 Color: Onyx
XB: Inner Back: Delite
XH13 Coor: Onyx

9ASLS-C-CH-K17751
Moment Side Chair with Arms, Sled Base, Upholstered Seat
C Frame: Trivalent Chrome
CH Back: Charcoal
K1775 Tex: Bistro
K17751 Color: Vanilla Bean

QG15274AL3SL
LSM L Leg Conference Table 120”w x 48”d c 29”H with Plinth Edge
Laminate: Special 142 Grey Ash

SS Leg/Edge: Brushed Adonized Aluminum
BE3: 3 x 1 Power Center, Center on Depth, One Side Location (A)
BE3: 3 x 1 Power Center, Center on Depth, One Side Location (A)
Knoll 48” Door Gas Spring with Clip
P/N KR6DO7601G11

Straight Worksurface, 24W x 30D x 1-1/4H, no grommets
P/N MU1S2430BQ (Legacy) L

Bracket, End Support-EV, 48D, machine screws
P/N MB3-EV48M (Legacy) U

Floorstanding Pedestal, Desk Height
14-7/8W x 24D x 26-5/8H (2 Box, 1 File)
P/N MD6-D2B1F-(Legacy)-U-(Legacy)-U-(Keyalike)

Worksurface, Straight, grommets, 60W x 23-5/8D x 1-1/4H
P/N MU1-S6024-A-(Legacy)-L

Double-Wide Floorstanding Pedestal
29-3/4W x 18D x 26-5/8H (2 File)
P/N MD6-W0B2F-(Legacy)-U-(Legacy)-U-(Random)

Cabinet with 3 Adjustable Shelves, 36W x 15D x 64H
P/N RC661B-1-Y319-W

PRICE SUMMARY SHEET

Prices below include direct costs, indirect costs, standby time, trip time, profits, any other costs, and shall remain firm throughout the contract term.

Installation/Configuration Services Contract Term: Effective - 3/31/2025	**Hourly Rate**
Monday - Friday, 6:00 a.m. to 6:00 p.m.	$ 61.00/Hr
Other Hours, Weekends, and Holidays	$ 92.00/Hr
Travel Time	**No Charge**

Contractor Services	**Hourly Rate**
Dealer Services	**No Charge**
AutoCAD Services	$ 89.50/Hr

Preventative Maintenance Services	**Hourly Rate**
On-Site (Mon-Fri, 6am-6pm)	$ 61.00/Hr
On-Site (Other Hours - Weekends)	$ 92.00/Hr
On-Site (Other Hours - Holidays)	$ 91.50/Hr

All parts used that are related to any maintenance repairs shall be billed at cost. Contractor shall provide supporting documentation to confirm actual cost of all replaced parts. Payments are contingent upon contractor providing proof of cost.

MISCELLANEOUS ITEM DISCOUNTS:
Dividends: 69%
Knoll Studio: 52.2%
Knoll Extra: 60%
Knoll Calibre: 60%
Moment Chairs: 47%
Remix Mid back/High back Chairs: 60%
Reff: 69%
Workrite: 50%; Knoll K-Stand: 69%; Knoll Anchor: 69%; Knoll Quion: 69%

PRICE SUMMARY SHEET

MISCELLANEOUS ITEM DISCOUNTS:

Miscellaneous items not listed may be purchased against the Contract. Contractor shall provide the Authority with a quote and obtain written approval from the Authority for all miscellaneous materials, parts and shop supplies prior to placing order. Pricing shall be based on the most current published pricing, catalog or other source, less Contractor's discount listed below. Contractor shall provide the list price and discount price on all invoice(s) for all miscellaneous items.

Percent Discount Off publisher's Price List: 50%

PRICE INCREASES/DECREASES:

No price increases will be permitted during the term of the Blanket Purchase Order. All price decreases will automatically be extended to Authority. Authority requires bona fide proof of cost increases on Contracts prior to any price adjustment. A minimum of ninety (90) days advance notice in writing is required to secure such adjustment. No retroactive price adjustments will be considered. Authority may enforce, adjust, negotiate, or cancel escalating price Contracts or take any other action it deems appropriate, as it sees fit. The net dollar amount of profit will remain firm during the period of the Blanket Purchase Order. Adjustments increasing the Contractor's profit will not be allowed.

FIRM DISCOUNT AND PRICING STRUCTURE:

Contractor guarantees that prices quoted are equal to or less than prices quoted to any other local, State or Federal government entity for services of equal of lesser scope. Contrator agrees that no price increases shall be passed along to Authority during the term of this Blanket Purchase Order not otherwise specified and provided for within this Blanket Purchase Order.

INSURANCE

The Contractor shall procure and maintain insurance coverage during the entire term of the Agreement. Coverage shall be full coverage and not subject to self-insurance provisions. The Contractor shall provide the following insurance coverage:

1. Commercial General Liability, to include Products/Completed Operations, Independent Contractor's contractual Liability, and Personal Injury Liability with at least $1,000,000 of coverage;

2. Automobile Liability Insurance with combined single limits of $1,000,000;

3. Workers Compensation with limits as established by the State of California with a waiver of subrogation favorable to the Authority; and

4. Employers Liability with a limit of $1,000,000.

Proof of such coverage, in the form of an insurance company issued policy endorsement and a broker-issued insurance certificate, must be received by Authority prior to commencement of any work. Proof of insurance coverage must be received by Authority within ten (10) calendar days from the effective date of this Agreement with the Authority, its officers, directors, employees and agents designated as additional insured on the general and automobile liability. Such insurance shall be primary and non-contributive to any insurance or self-insurance maintained by the Authority.

Contractor shall include on the face of the Certificate of Insurance the Purchase Order C23021; and, the Senior Contract Administrator's Name, Sue Ding.

Contractor shall also include in each subcontract the stipulation that subcontractors shall maintain insurance coverage in the amounts required from Contractor as provided in this Agreement.

- END OF PAGE-

LEVEL 1 HEALTH, SAFETY AND ENVIRONMENTAL SPECIFICATIONS

PART I – GENERAL

1.1 GENERAL HEALTH, SAFETY & ENVIRONMENTAL REQUIREMENTS

A. The Contractor, its subcontractors, suppliers, and employees have the obligation to comply with all Authority health, safety and environmental compliance department (HSEC) requirements of this safety specification, project site requirements, bus yard safety rules, as well as all federal, state, and local regulations pertaining to scope of work, contracts or agreements with the Authority. Additionally, manufacturer requirements are considered incorporated by reference as applicable to this scope of work.

B. Observance of repeated unsafe acts or conditions, serious violation of safety standards, non-conformance of Authority health, safety and environmental compliance department (HSEC) requirements, or disregard for the intent of these safety specifications to protect people and property, by Contractor or its subcontractors may be cause for termination of scope or agreements with the Authority, at the sole discretion of the Authority.

C. The health, safety, and environmental requirements, and references contained within this scope of work shall not be considered all-inclusive as to the hazards that might be encountered. Safe work practices shall be planned and performed, and safe conditions shall be maintained during this work scope.

D. The Authority Project Manager shall be responsible to ensure a safety orientation is conducted of known potential hazards and emergency procedures for all Contractor personnel, subcontractors, suppliers, vendors, and new employees assigned to the project prior to commencement of the project.

E. The Contractor shall ensure that all Contractor vehicles, including those of its subcontractors, suppliers, vendors and employees are parked in designated parking areas, and comply with traffic routes, and posted traffic signs in areas other than the employee parking lots.

F. California Code of Regulations (CCR) Title 8 Standards are minimum requirements; each Contractor is encouraged to exceed minimum requirements. When the Contractor's safety requirements exceed statutory standards, the more stringent requirements shall be applied for the safeguard of public and employees.

1.2 REGULATORY

A. Injury/Illness Prevention Program
The Contractor shall comply with CCR Title 8, Section with California Code of Regulations (CCR) Title 8, Section 3203. The intent and elements of the IIPP shall be implemented and enforced by the Contractor and its sub-tier contractors, suppliers, and vendors. The program shall be provided to the Authority’s Project Manager, upon request, within 72 hours.

B. Substance Abuse Prevention Program
Contractor shall comply with the Policy or Program of the Company's Substance Abuse Prevention Policy that complies with the most recent Drug Free Workplace Act. The program shall be provided to the Authority's Project Manager, upon request, within 72 hours.

C. Heat Illness Prevention Program
Contractor shall comply with CCR Title 8, Section, Section 3395, Heat Illness Prevention. The program shall be provided to the Authority's Project Manager, upon request, within 72 hours.

D. Hazard Communication Program
Contractor shall comply with CCR Title 8, Section 5194 Hazard Communication Standard. Prior to use on Authority property and/or project work areas Contractor shall provide the Authority Project Manager copies of SDS for all applicable chemical products used, if any. The program shall be provided to the Authority's Project Manager, upon request, within 72 hours.

a. All chemicals including paint, solvents, detergents and similar substances shall comply with South Coast Air Quality Management District (SCAQMD) rules 103, 1113, and 1171.

E. Storm Water Pollution Prevention Plan
The Contractor shall protect property and water resources from fuels and similar products throughout the duration of the contract. Contractor shall comply with Storm Water Pollution Prevention Plan (SWPPP) requirements. The program or plan if required by scope shall be provided to the Authority's Project Manager, upon request, within 72 hours.

1.3 INCIDENT NOTIFICATION AND INVESTIGATION

A. The Authority shall be promptly notified of any of the following types of incidents including but not limited to:

1. Damage incidents of property (incidents involving third party, contractor or Authority property damage);

2. Reportable and/or Recordable injuries (as defined by the U. S. Occupational Safety and Health Administration), a minor injury, and near miss incidents;
3. Incidents impacting the environment, i.e. spills or releases on Authority projects or property.

4. Outside Agency Inspections; agencies such as Cal/OSHA, DTSC, SCAQMD, State Water Resources Control Board, FTA, CPUC, EPA, USACE and similar agencies.

B. Notifications shall be made to Authority representatives, employees and/or agents. This includes incidents occurring to contractors, vendors, visitors, or members of the public

that arise from the performance of Authority contract work. An immediate verbal notice followed by an initial written incident investigation report shall be submitted to the Authority's Project Manager within 24 hours of the incident.

C. A final written incident investigative report shall be submitted within seven (7) calendar days and include the following information. The Current Status of anyone injured, photos of the incident area, detailed description of what happened, Photos of the existing conditions and area of the injury/incident, the contributing factors that lead to the incident occurrence, a copy of the company policy or procedure associated with the incident and evaluation of effectiveness, copy of task planning documentation, copy of the Physician's first report of injury, copy of Cal/OSHA 300 log of work related injuries and illnesses, the Cal/OSHA 301 Injury Illness Incident Report, and corrective actions initiated to prevent recurrence. This information shall be considered the minimum elements required for a comprehensive incident report provided to OCTA.

D. A Serious Injury, Serious Incident, OSHA Recordable Injury/Illness, or a Significant Near Miss shall require a formal incident review at the discretion of the Authority's Project Manager. The incident review shall be conducted within seven (7) calendar days of the incident. This review shall require a company senior executive, company program or project manager from the Contractors' organization to participate and present the incident review as determined by the OCTA Project Manager. The serious incident presentation shall include action taken for the welfare of the injured, a status report of the injured, causation factors that lead to the incident, a root cause analysis (using 5 whys and fishbone methods), and a detailed recovery plan that identifies corrective actions to prevent a similar incident, and actions to enhance safety awareness.

1. Serious Injury: includes an injury or illness to one or more employees, occurring in a place of employment or in connection with any employment, which requires inpatient hospitalization for a period in excess of twenty-four hours for other than medical observation, or in which an employee suffers the loss of any member of the body, or suffers any serious degree of physical disfigurement. A serious injury also includes a lost workday or reassignment or restricted injury case as determined by the Physician's first report of injury or Cal/OSHA definitions.

2. Serious Incident: includes but not limited to property damage of $500.00 or more, an incident requiring emergency services (local fire, paramedics and ambulance response), news media or OCTA media relations response, and/or incidents involving other agencies (Cal/OSHA, EPA, AQMD, DTSC, Metrolink, FTA, FRA etc.) notification or representation.

3. OSHA Recordable Injury / Illness: includes and injury / illness resulting in medical treatment beyond First Aid, an injury / illness which requires restricted duty, or an injury / illness resulting in days away from work.

4. Significant Near Miss Incident; includes incidents where no property was damaged and no personal injury sustained, but where, given a slight shift in time or position, damage and/or injury easily could have occurred.

LEVEL 1 HEALTH, SAFETY AND ENVIRONMENTAL SPECIFICATIONS

1.4 DESIGNATED HEALTH AND SAFETY REPRESENTATIVE

A. Upon contract award, the contractor within 10 business days shall designate a health and safety representative and provide a resume and qualifications to the Authority project manager, upon request, within 72 hours.

B. This person shall be a competent or qualified individual as defined by the Occupational, Safety, and Health Administration (OSHA), familiar with applicable CCR Title 8 Standards (Cal/OSHA) and has the authority to affect changes in work procedures that may have associated cost, schedule and budget impacts.

1.5 PERSONAL PROTECTIVE EQUIPMENT

A. The Contractor, its subcontractors, suppliers, and employees are required to comply with applicable personal protective equipment (PPE) requirements while performing work at any Authority project or property. Generally minimum PPE requirements include eye protection; hearing protection, head protection, class 2 or 3 safety reflective vests, and appropriate footwear.

B. The Contractor, its subcontractors, suppliers, and employees are required to provide their own PPE, including eye, head, foot, and hand protection, safety vests, or other PPE required to perform their work safely on Authority projects or property. The Authority requires eye protection on construction projects and work areas that meet ANSI Z-87.1 Standards.

1.6 REFERENCES

A. CCR Title 8 Standards (Cal/OSHA)
B. FCR Including 1910 and 1926 Standards
C. NFPA, NEC, ANSI, NIOSH Standards
D. Construction Industry Institute (CII)
E. OCTA Yard Safety Rules

END OF SECTION

DATE 03/27/2023

PURCHASE ORDER C23021

FOB:	DESTINATION - FREIGHT NO
BUYER:	SHWU YUAN DING

TO: PIVOT INTERIORS, INC.
3200 PARK CENTER DR.
100
COSTA MESA CA 92626

SHIP TO: Santa Ana Base Operations
4301 West MacArthur Blvd
Santa Ana, CA 92704

EMAIL INVOICES TO VENDORINVOICES@OCTA.NET OR MAIL TO:

Orange County Transportation Authority
PO BOX 14184
Orange, CA 92863-1584
Attn: Accounts Payable

PAYMENT WILL NOT BE MADE UNLESS INVOICE INDICATES PURCHASE ORDER NUMBER.

ATTN: KHOI NGUYEN
PHONE: 9499885442

REQUESTOR: ABRAHAM ANDRADE

ITEM NO.	QTY.	U/M	STOCK NO.	DESCRIPTIONS	DELIVERY DATE	TERMS	UNIT PRICE	EXTENSION
001		EA		OFFICE MODULAR SYSTEM SERVICES Effective through 3/31/2025 in accordance with Exhibit A, Scope of Work, Exhibit B, Price Summary Sheet, Exhibit C, Insurance, and Exhibit D, Level 1 Health, Safety and Environmental Specifications, attached to and, by this reference, incorporated herein. Requesting Department: General Services ll Terms and conditions as stated in IFB 2-3021 apply to this blanket purchase order. A CORRECT AND COMPLETE INVOICE. A CORRECT AND COMPLETE INVOICE SHALL CONSIST OF AT LEAST THE FOLLOWING ELEMENTS: PURCHASE ORDER NUMBER, DATE OF ORDER, INVOICE NUMBER, DATE OF INVOICE, CONTRACT PAYMENT TERMS, NAME OF BUYER OR CONTRACT ADMINISTRATOR, LINE BY LINE LISTING OF ALL ITEMS BEING INVOICED AND IDENTIFICATION OF INVOICING FIRM.	03/31/25	NET-30 1290-7662-A0001-4W4 1290-7611-A5310-1NX	$240,000.00	$240,000.00

ORANGE COUNTY TRANSPORTATION AUTHORITY

BY:_____

OCTA GENERAL PROVISIONS FOUND ON PAGE 3 ARE INCORPORATED HEREIN.

NOT SUBJECT TO TRANSPORTATION OR FEDERAL EXCISE TAX.

SUBTOTAL	
SALES TAX	
TOTAL	

PURCHASING

DATE 03/27/2023

PURCHASE ORDER C23021

FOB:	DESTINATION - FREIGHT NO
BUYER:	SHWU YUAN DING

TO: PIVOT INTERIORS, INC.
3200 PARK CENTER DR.
100
COSTA MESA CA 92626

SHIP TO: Santa Ana Base Operations
4301 West MacArthur Blvd
Santa Ana, CA 92704

EMAIL INVOICES TO VENDORINVOICES@OCTA.NET OR MAIL TO:

Orange County Transportation Authority
PO BOX 14184
Orange, CA 92863-1584
Attn: Accounts Payable

PAYMENT WILL NOT BE MADE UNLESS INVOICE INDICATES PURCHASE ORDER NUMBER.

ATTN: KHOI NGUYEN
PHONE: 9499885442

REQUESTOR: ABRAHAM ANDRADE

ITEM NO.	QTY.	U/M	STOCK NO.	DESCRIPTIONS	DELIVERY DATE	TERMS	UNIT PRICE	EXTENSION
				VERBAL ADDITIONS, DELETIONS, OR MODIFICATIONS OF ANY KIND TO THIS PURCHASE ORDER SHALL BE CONSIDERED UNAUTHORIZED AND INVALID. DO NOT ACCEPT VERBAL MODIFICATIONS FROM ANY EMPLOYEE, AGENT OR IMPLIED AGENT OF THE ORANGE COUNTY TRANSPORTATION AUTHORITY. VALID MODIFICATIONS TO THIS PURCHASE ORDER SHALL BE IN THE FORM OF A WRITTEN AMENDMENT, SIGNED BY AN AUTHORIZED MEMBER OF THE ORANGE COUNTY TRANSPORTATION AUTHORITY PROCUREMENT STAFF. PAYMENT UPON APPROVAL OF CORRECT AND COMPLETE INVOICE. ANY COSTS INCURRED IN EXCESS OF THE TOTAL AMOUNT OF THIS PURCHASE ORDER, WITHOUT BEING AMENDED, SHALL BE CONSIDERED UNAUTHORIZED, AND AS SUCH MAY NOT BE PAID.				

SUBTOTAL	$ 240,000.00
SALES TAX	$ 0.00
TOTAL	$ 240,000.00

ORANGE COUNTY TRANSPORTATION AUTHORITY

BY: Georgia Martinez

OCTA GENERAL PROVISIONS FOUND ON PAGE 3 ARE INCORPORATED HEREIN.

NOT SUBJECT TO TRANSPORTATION OR FEDERAL EXCISE TAX.

PURCHASING

MB

GENERAL PROVISIONS

1. INSPECTION AND ACCEPTANCE - All items are subject to final inspection and acceptance by AUTHORITY at destination notwithstanding any payment, passage of title, or prior inspection or test at SELLERs facilities. Final inspection will be made within a reasonable time after receipt of items hereunder. SELLER shall notify AUTHORITY of any known nonconforming product that is expected to be delivered or has been delivered. AUTHORITY shall have authority to approve or refuse identified nonconforming product. Defective goods may be returned at SELLERs expense.

2. CHANGES - By written notice or order, AUTHORITY may, from time to time, order work suspension and/or make changes in quantities, drawings, designs, specifications, place of delivery or delivery schedules, methods of shipment and packaging, and property and services furnished by SELLER. If any such change causes an increase or decrease in the price of this agreement or in the time required for its performance, SELLER or AUTHORITY shall promptly notify the other party thereof and assert its claim for adjustment within thirty (30) days after the change is ordered, and an equitable adjustment shall be made. However, nothing herein shall excuse SELLER from proceeding immediately with the agreement as changed.

3. DEFAULT AND EXCESS REPROCUREMENT LIABILITY - AUTHORITY may terminate this agreement if a federal or state proceeding for the relief of debtors is undertaken by or against SELLER, or if SELLER makes an assignment for the benefit of creditors, or if SELLER fails after reasonable notice by AUTHORITY to cure a deficiency in performance or lack of progress thereto. AUTHORITY shall have such additional remedies as may be available whether or not it so terminates this agreement, including, but not limited to, payment by SELLER to AUTHORITY of expenses incurred by AUTHORITY in reprocuring elsewhere the same or similar items or services defaulted by SELLER hereunder, provided SELLERs reprocurement expenses obligation shall be limited to the excess costs above the price specified herein for such items or services.

4. INDEMNIFICATION - SELLER shall indemnify, defend, and hold harmless AUTHORITY from and against any and all claims (including attorneys fees and reasonable expenses for litigation or settlement) for any loss, damage, claim, or harm for bodily injuries, including death or damage to property caused by SELLER or its employees, subcontractors, or suppliers in connection with the performance of this agreement.

5. ASSIGNMENTS AND SUBCONTRACTS - Neither this agreement nor any interest herein nor claim hereunder may be assigned by SELLER, either voluntarily or by operation of law, nor may all or substantially all of the agreement be subcontracted by SELLER without AUTHORITYs prior written consent. AUTHORITYs withholding of consent shall not be deemed to relieve SELLER of its obligations to comply fully with the requirements hereof.

6. FEDERAL, STATE, AND LOCAL LAWS - SELLER warrants that, in the performance of this agreement, it shall comply with all applicable Federal, State and local laws and ordinances and all lawful orders, rules and regulations thereunder.

7. INFRINGEMENT INDEMNITY - In lieu of any other warranty by AUTHORITY or SELLER against infringement, statutory or otherwise, it is agreed that SELLER shall defend, at its expense, any claim or suit against AUTHORITY based on a claim that any item furnished under this agreement or the normal use or sale thereof infringes any United States Letters patent or copyright, and SELLER shall pay all costs and damages finally awarded in any such suit or claim, provided that SELLER is notified in writing of the suit or claim and given authority, information, assistance at SELLERs expense for the defense of same. If the use or sale of said item is enjoined as a result of such suit, SELLER, at no expense to AUTHORITY, shall obtain for AUTHORITY the right to use and sell said item, or shall substitute an equivalent item acceptable to AUTHORITY, and extend this patent indemnity hereto.

8. TITLE AND RISK OF LOSS - Unless otherwise provided in this agreement, SELLER shall have title to and bear the risk of any loss of or damage to the items purchased hereunder until they are delivered in conformity with this agreement at the F.O.B. point specified herein, and upon such delivery, title shall pass from SELLER, and SELLERs responsibility for loss or damage shall cease, except for loss or damage resulting from SELLERs negligence. Passing of title upon such delivery shall not constitute acceptance of the item by AUTHORITY.

9. NOTICE OF LABOR DISPUTE - Whenever SELLER has knowledge that any actual or potential labor dispute may delay this agreement, SELLER shall immediately notify and submit all relevant information to AUTHORITY. SELLER shall insert the substance of this entire clause in any subcontract hereunder as to which a labor dispute may delay this agreement. However, any subcontractor need give notice and information only to its next higher-tier subcontractor.

10. EQUAL EMPLOYMENT OPPORTUNITY - In connection with the execution of this agreement, the SELLER shall not discriminate against any employee or applicant because of race, religion, color, sex or national origin. The SELLER shall take affirmative action to ensure that applicants are employed, and that employees are treated during their employment without regard to their race, religion, color, sex or national origin. Such actions shall include pay, or other forms of compensation and selection for training, including apprenticeship.

11. TERMINATION FOR CONVENIENCE - AUTHORITY may terminate this agreement for its convenience at any time, in whole or in part, by giving written notice to SELLER of such termination, effective on the date of such notice. Upon receipt of said notice, SELLER shall immediately take action not to incur any further obligations, costs, or expenses, except as may be reasonably necessary to terminate its activities. AUTHORITY shall pay SELLER its allowable costs incurred to date of termination and those costs determined by AUTHORITY to be reasonably necessary to effect such termination. All finished or unfinished documents and other materials procured or produced by SELLER hereunder shall, at the option of AUTHORITY, become AUTHORITY property upon the date of such termination.

GENERAL PROVISIONS

12. AUDIT AND INSPECTION OF RECORDS - SELLER shall provide AUTHORITY such access to SELLERs books, records, and facilities as may be deemed necessary to examine, audit, and inspect all work data, documents, and activities related to the goods or services described herein. SELLER shall maintain such books, records, data and documents on a generally accepted accounting basis and shall clearly identify and make such items readily accessible to such parties during SELLERs performance hereunder and for a period of four (4) years from the date of final payment by AUTHORITY hereunder.

13. TIME IS OF THE ESSENCE - Time is of the essence in the performance of this agreement. SELLERs delivery of the items and related data and/or documentation and/or performance of required services in accordance with the schedule are a material requirement of this agreement.

14. WARRANTY - SELLER warrants to AUTHORITY, its successors and customers that all items furnished to AUTHORITY will be free from defects in material and workmanship, will conform to applicable drawings, designs, specifications and samples, will meet all functional and performance requirements and, to the extent this order calls for services to be performed, that such services will be free from defects in workmanship, will meet all of the requirements of this agreement and will be performed to the highest standards of workmanship in the industry. These warranties are in addition to all other warranties, express, implied or statutory. In addition, the warranties set forth in this section shall survive any inspection, delivery, acceptance or payment by AUTHORITY.

15. FORCE MAJEURE - Either party shall be excused from performing its obligations under this agreement during the time and to the extent that it is prevented from performing by an unforeseeable cause beyond its control, including but not limited to: any incidence of fire, flood; acts of God; commandeering of material, products, plants or facilities by the federal, state or local government; national fuel shortage; or a material act or omission by the other party; when satisfactory evidence of such cause is presented to the other party, and provided further that such nonperformance is unforeseeable, beyond the control and is not due to the fault or negligence of the party not performing.

16. GOVERNING LAW - The laws of the State of California and applicable local and federal laws, regulations and guidelines shall govern this agreement.

17. SEVERABILITY - If any term, provision, covenant or condition of this agreement is held to be invalid, void or otherwise unenforceable, to any extent, by any court of competent jurisdiction, the remainder of this agreement shall not be affected thereby, and each term, provision, covenant or condition of this agreement shall be valid and enforceable to the fullest extent permitted by law.

18. NOTICES - All notices hereunder and communications regarding the interpretation of the terms of this agreement, or changes thereto, shall be effected by delivery of said notices in person or by depositing said notices in the U.S. mail, registered or certified mail, return receipt requested, postage prepaid to the addresses set forth in the agreement.

19. COMPLETE AGREEMENT - This agreement, the purchase order, and any attachments thereto or referenced therein, constitute the complete and exclusive statement of the term(s) and condition(s) of this agreement between SELLER and AUTHORITY and supersede all prior representations, understandings, and communications.